



POLICE DEPARTMENT

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In the Matter of the Disciplinary Proceedings :

- against - : FINAL

Police Officer Jonathan Vasquez : ORDER

Tax Registry No. 951370 : OF

47 Precinct : DISMISSAL
-----X

Police Officer Johnathan Vasquez, Tax Registry No. 951370, having been served with written notice, has been tried on written Charges and Specifications numbered C-031780 and C-030399 and, as set forth on form P.D. 468-121, dated January 4, 2023 and April 22, 2025, respectively, and after a review of the entire record, Respondent, having pleaded Guilty to all charges, is found Guilty of the charged misconduct.

Now therefore, pursuant to the powers vested in me by Section 14-115 of the Administrative Code of the City of New York, I hereby DISMISS Police Officer Jonathan Vasquez from the Police Service of the City of New York.


HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT

February 18, 2026

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In the Matter of the Charges and Specifications	:	Case Nos.
- against -	:	C-030399
Police Officer Jonathan Vasquez	:	C-031780
Tax Registry No. 951370	:	
47 Precinct	:	

-----X

At: Police Headquarters
One Police Plaza
New York, NY 10038

Before: Honorable Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPEARANCES:

For the Department: Matthew McCarthy, Esq.
Department Advocate's Office
One Police Plaza, Room 402
New York, NY 10038

For the Respondent: Michael Martinez, Esq.
Martinez & London, LLP
111 John Street, Suite 640
New York, NY 10038

To:

HONORABLE JESSICA S. TISCH
POLICE COMMISSIONER
ONE POLICE PLAZA
NEW YORK, NY 10038

COURTESY • PROFESSIONALISM • RESPECT

CHARGES AND SPECIFICATIONS

Disciplinary Case No. C-030399

1. Said Police Officer Jonathan Vasquez, while off duty and assigned to the Bronx Court Section, on or about April 9, 2024, wrongfully left his residence, while on regular sick leave and having been designated Chronic B Sick, without proper authorization.

A.G. 330-01, Page 1, Paragraph 4

REGULAR SICK

2. Said Police Officer Jonathan Vasquez, while off duty and assigned to the Bronx Court Section, on or about and between May 24, 2024 and May 27, 2024, repeatedly failed to report to the Medical Division as ordered/directed by supervisors, and did so while on Regular Sick leave and having been designated Chronic Absent-Category B, as required.

A.G. 330-01, Page 1, Paragraph 6

REGULAR SICK

Disciplinary Case No. C-031780

1. Said Police Officer Jonathan Vasquez, while off duty and assigned to the 47th Precinct, on or about January 3, 2023, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department in that said Police Officer operated a motor vehicle while under the influence of an intoxicant.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

V.T.L. §1192 (3)

DRIVING WHILE
INTOXICATED

2. Said Police Officer Jonathan Vasquez, while off duty and assigned to the 47th Precinct, on or about January 3, 2023, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer operated a motor vehicle while his ability to do so was impaired by the consumption of an intoxicant.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

V.T.L. §1192 (1)

DRIVING WHILE
IMPAIRED

3. Said Police Officer Jonathan Vasquez, while off duty and assigned to the 47th Precinct, on or about January 3, 2023, engaged in conduct prejudicial to the good order, efficiency or discipline of the Department, in that said Police Officer refused to submit to a chemical breath test.

A.G. 304-06, Page 1, Paragraph 1

PROHIBITED
CONDUCT

V.T.L. §1194 (1)(b)

REFUSAL TO TAKE A
BREATH TEST

4. Said Police Officer Jonathan Vasquez, while off duty and assigned to the 47th Precinct, on or about January 3, 2023, wrongfully consumed an intoxicant to the extent that said Police Officer was unfit for duty.

A.G. 304-04, Page 1, Paragraph 2

FITNESS FOR DUTY

REPORT AND RECOMMENDATION

The above-named member of the Department appeared before me on January 27, 2026. Respondent, through his counsel, entered a plea of Guilty to the subject charges, and testified in mitigation of the penalty. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review. Having evaluated all the evidence in this matter, I find Respondent Guilty in accordance with his pleas and recommend that his employment be terminated.

SUMMARY OF EVIDENCE IN MITIGATION

Respondent testified that, since 2019, his home of record has been in Putman County. On January 3, 2023, he attended a birthday dinner at a restaurant named Budaakan, in Manhattan, at which he consumed "a couple of [alcoholic] drinks." He recalled that the dinner began at "9, 10ish." There came a time when he left that gathering and went to another venue, where he consumed another drink. He remained at the second venue for approximately one hour, before accepting a ride from a friend to pick up his car, which he had parked near Budaakan. He then drove north on the West Side Highway, toward the Harlem River Drive, on his way to his sister's home in the Bronx. Respondent claimed that he had sustained tire damage and pulled over to assess it; once he did, he concluded that the car was inoperable and intended to call a tow truck but fell asleep in the driver's seat before he could do so. (Tr. 20-22, 31-35)

Respondent admitted that he was awakened by police officers at approximately 0510 hours, on the shoulder of the Harlem River Drive, north of 185th Street. He further admitted that at the time the police officers came upon him, he was asleep in the driver's seat, with the engine running. He admitted to being intoxicated but explained that the combination of the drinks he consumed, in addition to being awake since 0500 hours the previous morning, rendered him unfit for duty and too impaired to drive safely. (Tr. 22-23, 33-34)

Respondent testified that after his DWI arrest, he was modified and transferred from the 47th Precinct to Bronx Central Booking. Rather than commuting from Putnam County during the workweek, he reached an agreement with his sister to reside with her in the Bronx. He admitted that he did not advise the Department of his change of residence. (Tr. 24-27, 29)

On April 9, 2024, he was supposed to report for duty at 0723 hours but did not do so because he was ill. He explained that that he suffers from irritable bowel syndrome as an after-effect of bariatric surgery he had in 2022. He admitted that he did not call his command prior to the commencement of his tour; instead, he called at approximately 0930 hours, when he woke up, to advise them that he was taking a sick day. During that call, Respondent did not advise his command that he was staying at his sister's residence. He admitted to being aware that, as someone who had been designated as "Chronic Sick B," he was obligated to seek permission from the Medical Division any time he wanted to leave his home of record. (Tr. 25-26, 28, 39, 41)

He later learned that while he was sleeping, his command attempted to contact him several times by telephone, and that Absence Control Unit investigators had appeared at his home of record in Putnam County. It was only when the investigators called him after receiving no response at his Putnam County residence that he disclosed he was in the Bronx at his sister's

home. Respondent testified that he rationalized not advising his command of his location because he was aware that he would have to report to the Medical Division offices in Lefrak City the next day and it did not make sense for him to travel to Putnam County, only to have to travel to Queens the next morning. (Tr. 26-27, 39-40)

He testified further that on May 24, 2024, he was at his home of record in Putnam County, suffering from a bout of severe intestinal discomfort. When he reported to the Medical Division that he was ill, he was advised that he had to report to Lefrak City in person the next day, May 25th. He did not appear on May 25th, as he was obligated to do; he explained that because his driving privileges had been suspended as a consequence of his DWI arrest, and he was unwell, he felt it was impracticable for him to attempt to travel to Lefrak City by public transportation. (Tr. 24, 28, 41-43)

Respondent testified that members of the Absence Control Unit visited him on May 25th, and ordered him verbally, and in writing, to appear the next day, May 26, 2024, at Lefrak City. He admitted that he did not appear at Lefrak City on May 26th, and did not report on May 27th, when investigators from the Absence Control Unit appeared again at his residence. They ordered Respondent to report to the Medical Division offices in Lefrak City, on May 28th. Respondent testified that he did appear at the Medical Division offices on May 28th and was excused from duty for several additional days. (Tr. 42-44)

Respondent testified further that since he has been restored to full duty, he has resumed patrol duties in the 47th Precinct. (Tr. 29-30)

PENALTY

In order to determine an appropriate penalty, this Tribunal, guided by the Department's Disciplinary System Penalty Guidelines, considered all relevant facts and circumstances,

including potential aggravating and mitigating factors established in the record. Respondent's employment history was also examined (*See* 38 RCNY § 15-07). Information from his personnel record that was considered in making this penalty recommendation is contained in an attached memorandum.

Respondent forfeited eight vacation days in 2017 for failing to terminate a vehicle pursuit when the risk of injury outweighed the need to stop the vehicle.

Respondent, who was appointed to the Department on July 6, 2011, has pled guilty to (1) operating a motor vehicle while under the influence of an intoxicant; (2) operating a motor vehicle while his ability to do so was impaired by an intoxicant; (3) refusing to submit to a chemical test breath; (4) wrongfully consuming an intoxicant to the extent that he was unfit for duty; (5) wrongfully leaving his residence while on regular sick leave, having been designated Chronic B sick, without proper authorization; and (6) failing to report to the Medical Division as ordered.

The Department Advocate has recommended the presumptive penalty of termination, based upon the total number of penalty days for each instance of misconduct exceeding 90 penalty days (*Matrix*, p. 13). I concur with their recommendation.

The presumptive penalty for driving while impaired/intoxicated is 30 suspension days, 20 penalty days, dismissal probation, cooperation with counseling and ordered breath testing (*Matrix*, p. 39). The Disciplinary Guidelines set forth an additional forfeiture of 10 penalty days for the aggravating factor of driving while impaired/intoxicated with an open container in the vehicle (*Matrix*, p. 40). Based upon the evidence in the record, I recommend the forfeiture of 30 suspension days (previously served), and a total of 30 vacation days.

The presumptive penalty for refusal to submit to breathalyzer testing is 30 suspension days and dismissal probation (*Matrix*, p. 39). I recommend the forfeiture of 30 suspension days (previously served), to run consecutively to the penalty for driving while impaired/intoxicated.

The presumptive penalty for being out of residence while on sick leave is 10 penalty days; the mitigated penalty is five days, and the aggravated penalty is 20 days (*Matrix*, p. 47). I recommend the forfeiture of 10 penalty days, to run consecutively to the penalties for driving while impaired/intoxicated and for refusing a breathalyzer.

The presumptive penalty for failure to comply with a lawful order is 20 penalty days; the mitigated penalty is 15 penalty days, and the aggravated penalty is 30 penalty days (*Matrix*, p. 46). I recommend the forfeiture of 30 vacation days, the aggravated penalty, to run consecutively to the penalties for driving while impaired, refusing a breathalyzer, and being out of his residence without authorization.

Respondent testified that he did not share all the relevant circumstances of his personal situation and medical condition on May 24th because “I had no one to talk to, and the Department doesn’t care . . .” (T. 48). This assertion is not only self-serving but belied by reality. This Department provides unlimited sick leave to Members of Service as a recognition of the risk of physical injury on duty. While there are indeed officers assigned to the Absence Control and Investigations Unit whose role is to ensure that MOS do not abuse their unlimited sick leave, their responsibilities should not be trivialized. It is a core value of this Department that when a Member of Service does not report, as expected, uniformed police officers are dispatched to the MOS’ home of record to assess their physical condition and render aid, if necessary.

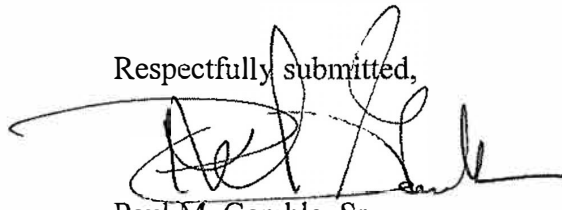
Moreover, Respondent’s claim does not adequately explain why he did not appear at the Lefrak City offices of the Medical Division for three days, despite being personally ordered to do

so. Respondent's fatalistic approach has ramifications in a paramilitary organization where obedience to lawful orders is nonnegotiable. Accordingly, I find that he failed to obey lawful orders on three occasions, one for each day that he did not report to the Medical Division during the period from March 24th to March 27th. Rather than recommend the presumptive penalty for each instance of disobedience, which would come to a total of 60 vacation days, I have recommended the imposition of the aggravated penalty of 30 vacation days.

Thus, the total number of penalty days in my recommendation is 100, changing the presumptive penalty for the misconduct to which Respondent has pled Guilty to either termination or forced separation (*Matrix*, p. 13). Based upon the totality of the evidence, I find that subjecting Respondent to a one-year period of dismissal probation monitoring would not advance the interests of good order and discipline in this Department. In the judgement of this Tribunal, Respondent's repeated refusals to obey lawful orders weighs against affording him another opportunity to demonstrate that he can adhere to Department rules.

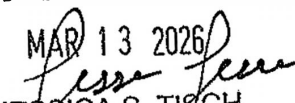
Accordingly, I recommend that Respondent be Dismissed from the New York City Police Department

Respectfully submitted,



Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials

APPROVED

MAR 13 2026

JESSICA S. TISCH
POLICE COMMISSIONER



POLICE DEPARTMENT CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials

To: Police Commissioner

Subject: SUMMARY OF EMPLOYMENT RECORD
POLICE OFFICER JONATHAN VASQUEZ
TAX REGISTRY NO. 951370
DISCIPLINARY CASE NOS. C-030399 & C-031780

Respondent was appointed to the Department on July 6, 2011. On his three most recent annual performance evaluations, he was rated “Exceeds Expectations” for 2023, 2024 and 2025. He has also been awarded two medals for Meritorious Police Duty and twenty-two (22) medals for Excellent Police Duty.

In 2017, Respondent forfeited eight (8) vacation days after being found guilty of failing to terminate a vehicle pursuit when the risk of injury outweighed the need to stop the vehicle.

In February 2023, Respondent was placed on Level 2 Discipline Monitoring; that monitoring remains ongoing.

In connection with the instant matter, Respondent was suspended without pay from January 3, 2023, through February 2, 2023.

For your consideration.

Paul M. Gamble, Sr.
Assistant Deputy Commissioner Trials